

The board in T 1269/06 held that, for the assessment of whether, contrary to Art. 100(c) EPC 1973, the subject-matter of the patent extends beyond the content of the application as filed, the key question is whether the amendments made in the description, or – as in the case at issue – the claims, did indeed provide the skilled person with additional, technically relevant information which was not contained in the original application documents. This cannot be inferred from the fact alone that terms not present in the application documents were subsequently introduced, or from a purely semantic analysis of the contested passages. Instead, the party or department raising the objection must be able to identify clearly the technical teaching as such which has supposedly been added.

In T 99/13 the board recalled, in line with the case law (see T 667/08, T 1269/06, quoted in the decision; see also e.g. T 988/91, T 494/09), that the assessment of the requirements of Art. 123(2) EPC should be done on the same basis as for all other patentability issues (e.g. novelty and inventive step), namely from the standpoint of the skilled person on a technical and reasonable basis **avoiding artificial and semantic constructions**. The skilled person, reading claim 1 as originally filed **from the standpoint of a technician working in the field**, would read the broad condition expressed therein with regard to the viscosity measurement, as a condition to be met at the temperature of use of the claimed formulation and would turn to the description to find further information in this respect. See also T 2255/12 which guards against an **overly formalistic approach** in which more emphasis is given to the literal content of the original application rather than the technical information that it conveys. In the same vein, see T 1690/15. See also T 195/20.

Literal support for amendments in a patent application is **not required** under Art. 123(2) EPC, insofar as the amended or added features reflect the technical information that the skilled person reading the original disclosure would have derived from its content (description, claims and drawings) considered in its entirety (T 1728/12 citing decision T 667/08; see also T 1731/07, T 45/12, T 801/13, T 1717/13 and T 640/14). See also in this chapter II.E.1.3.3 "Implicit disclosure" below.

In T 1717/13 the board noted that the respondent/opponent's objections primarily pointed to differences in the wording between the application as filed and the claim amendments. It was, however, generally accepted that for the purposes of Art. 123(2) EPC an explicit basis for an amendment in the original application documents was not required as long as the amendment was clearly and unambiguously derivable, using common general knowledge, from the application as filed.

The board in T 2619/11 took the view that the focus of the first-instance decision was **disproportionately directed to the structure of the claims** as filed to the detriment of what was really disclosed to the skilled person by the documents as filed. The application was directed to a technical audience rather than to a philologist or logician, for which audience an attempt to derive information from the structure of dependent claims would lead to an artificial result. T 1363/12 considered that T 2619/11 did not lay down a new test (namely, of what was "really disclosed" to the skilled person) different from the "gold standard" (see in this chapter II.E.1.3.1) (see also T 938/11). See also T 1194/15 (referring to T 2619/11) which accepted in the case at issue that the incorporated features were

disclosed in the application as filed as a general disclosure applicable to all embodiment of the invention and considered the contrary approach adopted by the appellant/opponent as very formalistic, without taking into account the type of **audience** to which the patent is directed.

In T.113/16 the board recalled (with reference to the "Case law of the Boards of Appeal", 8th edition 2016, chapter II.A.6.1) that in interpreting claims, in order to determine their content, the skilled person read them with synthetic propensity, building up rather than tearing down – with the aim of making technical sense of their wording and in a way that takes account of the whole disclosure of the patent. Claims are thus read with a **mind willing to understand**, contextually, and using normal reading skills. The same naturally applied to the description and drawings, bearing in mind their purpose to describe or illustrate by detailed examples the basic concept of an invention claimed. Thus, the skilled person approaches claims, description and drawings as integral and connected parts of a whole disclosure. This applied also to determining the contents of the application as filed. See also T.488/16 and T.516/18. However, see T.916/15, in which the board took the view that the jurisprudence of the boards of appeal referring to "a mind willing to understand" did not apply for the purpose of assessing the allowability of amendments under Art.123(2) EPC.

A new definition differing from the standard definition known by the skilled person does not add subject-matter, if there is pertinent disclosure in the application as a whole (T.1598/18).

1.3.3 Implicit disclosure

Subject-matter which is implicitly disclosed to the skilled person, using common general knowledge, in the application as filed is part of its content (see G.2/10, OJ 2012, 376). As pointed out in T.860/00, the disclosure implicit in the patent application – i.e. what any person skilled in the art would consider was **necessarily implied** by the patent application as a whole (e.g. in view of basic scientific laws) – is relevant for the requirements of Art.123(2) EPC 1973 (see also e.g. T.947/05, T.1772/06, T.1041/07, T.1125/07, T.2541/11, T.2273/12, T.389/13, T.2267/14, T.1690/15).

It is essential to identify the actual teaching conveyed by the original disclosure. This approach might lead to the identification of subject-matter which has not been explicitly revealed as such in the application as filed, but nevertheless derives directly and unambiguously from its content. Literal support is not required by Art.123(2) EPC (see e.g. T.667/08, T.2177/11, T.1728/12, T.801/13, T.640/14).

In T.823/96 the board observed that the term "implicit disclosure" should not be construed to mean matter that does not belong to the content of the technical information provided by a document but may be rendered obvious on the basis of that content. The term "implicit disclosure" relates solely to matter which is not explicitly mentioned, but is a **clear and unambiguous consequence of what is explicitly mentioned** (see also e.g. T.1125/07, T.1673/08, T.583/09, T.2016/11, T.49/13; T.2842/18 refers to this definition as established

jurisprudence; for cases delimiting implicit subject-matter from merely obvious subject-matter, see also in this chapter II.E.1.3.4.a)).

In T.917/94 the board decided that the omission of a feature of a claim did not contravene Art. 123(2) EPC 1973, if this feature was implicitly defined by two other features and, being therefore redundant, its omission created no subject-matter extending beyond that of the application as filed.

In T.1171/08 the board found that **indicating the purpose** as a functional feature in a use claim limited the claim to those embodiments whereby the purpose could be achieved. Only to that extent could the indication of purpose implicitly comprise features essential to achieving the desired selectivity. By no means, however, could the indication substitute the essential features specifically disclosed in that connection in an application. In the end, the board held that the skilled person could not derive the new combination of features directly and unambiguously from the application as filed.

1.3.4 Subject-matter not implicitly disclosed

a) Subject-matter merely rendered obvious by the content of the application

In T.329/99 the board stated that a clear distinction had to be made between the questions whether a particular embodiment was disclosed by an application, be it explicitly or implicitly, or/and whether that embodiment was merely rendered obvious by the application's disclosure (referring to T.823/96; see also T.1171/08). A particular technical embodiment might be rendered obvious on the basis of the content of an application as filed without, however, belonging to its explicit or implicit disclosure and therefore without serving as a valid basis for amendments complying with the requirements of Art. 123(2) EPC 1973.

In T.598/12 the board had to assess whether the skilled person using his **common general knowledge** would regard the additional technical information encompassed by the claims after the amendment as directly and unambiguously implicitly disclosed in the parent application as filed. The board stressed that it was not to be investigated whether this technical information derived from the prior art knowledge in the field. What had to be assessed was whether the notional skilled person working in the field would consider something as directly and unambiguously disclosed in the light of this common general knowledge. It recalled that the assessment of what information was implicitly disclosed in an application could not go beyond the limits of what the skilled person would objectively understand to be a direct and unambiguous consequence of the explicit disclosure in the particular case. Moreover, when performing this assessment, the common general knowledge could not serve to enlarge or replace, in a subjective or artificial manner, the actual content of the specification. The investigation of the actual disclosure in a patent application as filed could not turn into an investigation of obviousness or a search for obvious alternatives of the actual disclosure in the light of general prior art documents. See also T.3035/19.

Referring to T.598/12, the board in T.2489/13 confirmed that the criterion of whether alternatives are well known in the field could not be taken as a valid approach for the investigation of at least an implicit disclosure.

b) Results of reflection and imagination of the skilled person

The board in T.89/00, citing T.260/85 (OJ 1989, 105), T.64/96 and T.415/91, held that, according to the case law of the boards of appeal, a distinction must be made between what the original documents of a patent directly and unambiguously disclosed to a skilled person and what said skilled person on the basis of this disclosure may do upon reflection and using his imagination. His thinking is **not part** of the content of the original documents of the patent. See also T.553/15.

In T.782/16 the board held that for a correct application of the gold standard, a distinction needed to be made between subject-matter which was disclosed either implicitly or explicitly in the original (or earlier) application and therefore could be directly derived from it, and subject-matter which was the result of an intellectual process, in particular a complex one, carried out on what was disclosed.

c) General open-ended statement in description

In T.1538/12 the board held that the general statements at the end of the description (e.g. "other variations and modifications of the exemplary embodiments described above may be made" or "other embodiments will be apparent to those skilled in the art") did not constitute, and thus could not replace, a direct and unambiguous disclosure of the particular generalisation. The general statements at the end of the description were furthermore open ended and attempted to burden the skilled reader with having to work out which combinations of features from the detailed embodiments might be claimed together, while the applicant was supposedly dispensed from having to present his invention in terms more general than mere detailed description of particular embodiments. See also T.1365/16.

1.3.5 Conditions insufficient for compliance with Article 123(2) EPC

a) Consistency with original disclosure

In T.962/98 the appellant argued that the claimed subject-matter derived from Example 1D and the content of the application as originally filed. In particular, tests carried out on the composition of Example 1D showed that the "four surfactants" could be applied in a more general context, present claim 1 being, furthermore, consistent with the description. Contrary to the appellant's submissions, in order to assess whether an amendment complied with the requirements of Art. 123(2) EPC 1973, the question was neither whether or not a skilled person could design other compositions in the light of the directions given by the tests nor whether or not the amended subject-matter was consistent with the description. On intermediate generalisations, see below in chapter II.E.1.9.

In T 495/06 the appellant's argument that the amendments were "not inconsistent" with the original disclosure failed to persuade the board, since the applicant thereby invoked a less stringent criterion for compliance with Art. 123(2) EPC than that developed in the jurisprudence of the boards of appeal, namely the question whether the amendment was "directly and unambiguously derivable" from the application documents as originally filed.

In earlier decisions, such as in T 514/88 (OJ 1992, 570) the boards observed that the relevant question was whether or not the amendment was "consistent with the original disclosure"; the boards clarified that this meant direct and unambiguous derivability from and no contradiction of the totality of the original disclosure (see also T 527/88 and T 685/90).

b) Reasonable plausibility of the included feature

In T 824/06 the opposition division had rejected the main request because its subject-matter included a temperature maximum for the first *and* the second cooling step whereas the application as originally filed disclosed the requirement that the surface is brought down to this maximum only in relation to the overall cooling treatment. The proprietor had argued that reducing the temperature to this value during the first cooling would be reasonable. The board stated that for an amendment to be allowable under Art. 123(2) EPC its direct and unambiguous disclosure was required; reasonable plausibility was insufficient.

1.3.6 Criteria not relevant for assessing compliance with Article 123(2) EPC

a) Indication in the description that subject-matter is known to the skilled person

In T 903/16 the examining division had argued that the original disclosure did not indicate or imply that the devices described therein could be new and inventive and had considered the later claiming of such devices as an infringement of Art. 123(2) EPC. The board emphasised that the fact that in the application the disclosed range of devices is stated to be within the means known to the skilled person may be considered when examining other EPC requirements, but it has no bearing on the question of disclosure for the purposes of Art. 123(2) EPC.

b) Enabling disclosure

In T 1724/08 the board held that the criterion of "direct and unambiguous disclosure" was quite different from the criterion submitted by the appellant, namely whether a person skilled in the art in view of the disclosure was enabled to achieve the envisaged result, i.e. the claimed functionality, without undue difficulty. This latter criterion would allow many different new definitions of subject-matter, none of which would need to be derivable "directly" and "unambiguously" from the earlier application as filed.

In T 2593/11 the examining division had taken the view that it was not self-evident that devices according to claim 1 could actually be manufactured using a specific fabric and, therefore, the manufacturing of the device using this fabric was not disclosed. The board